

Calendar Line 1

Case Name: Carrie Moles v. City of Santa Clara et al.

Case No.: 24CV442171

Defendant Forty Niners Stadium Management Company LLC's (Forty Niners SMC) demurrer to the first amended complaint. Notice is proper and the demurrer is opposed by Plaintiff.

This is an action for premises liability brought by plaintiff Carrie Moles (Plaintiff) based on a slip and fall that allegedly occurred on January 14, 2023 when Plaintiff was attending a football game at Levi's Stadium in Santa Clara, California. Plaintiff's original complaint, a form complaint, was filed in June 2024. The complaint named as defendants the City of Santa Clara, the Santa Clara Stadium Authority, and Does 1-50. The complaint alleged a single cause of action for "premises liability," with the boxes for two "counts" checked on the form attachment: (1) negligence, and (2) dangerous condition of public property. The Doe defendants were alleged to be agents or employees of the two named defendants. (Complaint, ¶ 6 and Prem.L-5.a.)

The named parties (Plaintiff, the City of Santa Clara, and the Santa Clara Stadium Authority) entered into a stipulation in July 2025, which became an order of the court when signed by the court (Judge Pennypacker) in August 2025. The stipulation stated that Plaintiff "should be granted leave to file a First Amended Complaint and Summons to substitute the true names of the DOE defendants in place of the factiously [*sic*] named DOES in the original complaint as applicable pursuant to California Code of Civil Procedure section 474." (Stipulation at p. 1:9-12.) The stipulation also states that the parties agreed "that this amendment shall not prejudice any defense that the newly added defendants may assert." (*Id.* at p. 1:24-25.) The court takes judicial notice of the stipulation and order on its own motion under Evidence Code section 452, subdivision (d).

Plaintiff's FAC, another form complaint, was filed on September 2, 2025, stating the same single cause of action for "premises liability" and the same two "counts." The FAC added the Forty Niners Stadium Management Company LLC and ABM Industry Groups LLC as named defendants to the negligence "count." The FAC does not expressly allege that either of the new defendants are substituted for specific Does, and it does not allege that either of the new defendants are agents or employees of the two original defendants. (The court acknowledges the FAC refers to Doe defendants "3 to 50" in certain places, suggesting Plaintiff may have intended to substitute the new defendants for Doe defendants 1 and 2.) Doe defendants 3-50 are all alleged to be agents or employees of other alleged defendants. (See FAC at ¶ 6 and Prem.L-5.a.) There are no exhibits attached to the FAC.

There are no allegations in the FAC describing the discovery of the newly added defendants' identity. The only narrative portion of the FAC alleges: "Plaintiff was a guest attending a football game at Levi's Stadium located at 4900 Marie P DeBartolo Way, Santa Clara, CA, 95054. Plaintiff slipped and fell due to [a] dangerous and unsafe condition of the subject property. Plaintiff slipped and fell on liquid or some other foreign substance which had been allowed to accumulate on the floor and thereby legally caused the injuries and damages to Plaintiff. Defendants owned, leased, occupied, operated, controlled, possessed, supervised, managed, inspected, maintained, repaired, and/or was legally responsible for the subject property. Defendants so negligently owned, leased, occupied, operated, controlled, possessed,

supervised, managed, inspected, maintained, and/or repaired the area where Plaintiff was injured such that unsafe and dangerous conditions existed, causing Plaintiff's injuries."

Plaintiff's injuries are not described in the FAC. The FAC itself cannot be construed as a Doe amendment under Code of Civil Procedure section 474, and no Doe amendment has been filed.

REQUESTS FOR JUDICIAL NOTICE

Both sides have submitted requests for judicial notice. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

Forty Niners SMC's Request

Forty Niners SMC requests judicial notice of two documents, the original complaint and the FAC. (Request at pp.1:25-2:7.) The court denies this request as unnecessary; the court already considers both pleadings in evaluating this demurrer. (*Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn.1 [denying as unnecessary a request for judicial notice of pleading under review on demurrer].)

Forty Niners SMC also requests judicial notice of the fact that "the San Francisco Forty Niners is the football team that plays at Levi's Stadium located at 4900 Marie P DeBartolo Way, Santa Clara, CA," pursuant to Evidence Code section 452, subdivision (g). (Request at p. 2:8-13.) That request is granted.

Plaintiff's Request

Plaintiff requests judicial notice of three court filings: the original complaint, the stipulation and order permitting the filing of the FAC, and the FAC itself. (See request at p. 1:3-19.) This request is denied as unnecessary. The court already considers both the complaint and FAC in ruling on the demurrer, and the court has already taken judicial notice of the stipulation and order.

LEGAL STANDARDS FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that "[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) ["Each ground of demurrer must be in a

separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

Where a demurrer is to an amended complaint or cross-complaint, the court “may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making contradictory averments, in a superseding, amended pleading.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034, internal quotations omitted (*Berg & Berg*); see also *Doe v. United States Youth Soccer Assoc.* (2017) 8 Cal.App.5th 1118, 1122.)

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declaration from Maria Lampasona filed in support of the demurrer only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the attached exhibits or arguments based on these exhibits. The court has not considered any portion of the declaration from Plaintiff’s counsel Darren Darwish filed with the opposition, any attached exhibits, or arguments based on the exhibits. While the demurring party is required by statute to submit a declaration addressing meet and confer efforts, there is no authority permitting the party opposing a demurrer to submit declarations. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Forty Niners SMC demurs to the entire FAC and the sole cause of action for premises liability on the ground that it fails to state sufficient facts because it is time-barred as alleged against Forty Niner SMC. Forty Niner SMC contends “Plaintiff failed to file her FAC naming Defendant as a party within the two-year statute of limitations set forth in Code of Civil Procedure section 335.1.” (See Notice of Demurrer and Demurrer.)

An “injury to ... an individual caused by the wrongful act or neglect of another” is subject to a two-year statute of limitations. (Code Civ. Proc., § 335.1; *Johnson v. Open Door Community Health Centers* (2017) 15 Cal.App.5th 153, 160 [premises liability claims subject to two-year statute of limitations].)

“A complaint showing on its face the cause of action is barred by the statute of limitations is subject to general demurrer.” (*Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995.) The running of the statute must appear clearly and affirmatively from the dates alleged—it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42.) “Generally, the limitations period starts running when the last element of a cause of action is complete.” (*NBCUniversal Media, LLC v. Super. Ct.* (2014) 225 Cal.App.4th 1222, 1231.) Both the complaint and the FAC allege that Plaintiff was injured on January 14, 2023. The premises liability cause of action was complete at the time of injury. “The fact that a plaintiff does not know the identity of each and every defendant who has caused the harm, does not toll the running of the statute of limitations. The identity of the defendant is not an element of the cause of action. Once a plaintiff is aware of the injury, the limitations period is presumed to afford sufficient opportunity to discover the identity of all the defendants.”

(*Burdette v. Carrier Corp.* (2008) 158 Cal.App.4th 1668, 1693, internal citations omitted (*Burdette*).)

Plaintiff's cause of action for premises liability based on the January 14, 2023 injury became time-barred against anyone not already a named defendant on January 15, 2025. The premises liability claim became time-barred as to Forty Niners SMC well before the FAC was filed on September 2, 2025, and well before the original parties to the lawsuit (Plaintiff, the City of Santa Clara, and the Santa Clara Stadium Authority) entered into the stipulation regarding the filing of a FAC on July 31, 2025.

Plaintiff argues that the original parties' stipulation bars Forty Niners SMC from raising this issue because the stipulation became an order of the court. But the existing parties to a lawsuit have no power to bind nonparties through a stipulation. Nor can they preclude them from raising whatever rights and defenses those nonparties have under the law if they are later named as parties. The stipulation here also expressly states that the proposed FAC "shall not prejudice any defense that the newly added defendants may assert." (Stipulation at p. 1:24-25.) That the same law firm that represented the original defendants also represents Forty Niners SMC is irrelevant. The only parties to the stipulation are Plaintiff, the City of Santa Clara, and the Santa Clara Stadium Authority.

The existing parties to a lawsuit do not have any power to revive already expired causes of action by stipulation, particularly claims against individuals or organizations that are not already parties to the lawsuit. By the time the stipulation was signed on July 31, 2025 the statute of limitations had run for a premises liability claim against Forty Niners SMC based on Plaintiff's January 14, 2023 injury.

Plaintiff made no attempt to comply with Code of Civil Procedure section 474's procedural requirements before her premises liability claim was time-barred against Forty Niners SMC. No Doe amendment substituting Forty Niners SMC for any specific Doe defendant named in the original complaint was filed before January 15, 2025. The FAC also does not contain any allegations that either of the newly added defendants are substituted for specific Does pursuant to Code of Civil Procedure section 474. In any event, the premises liability cause of action was already time-barred as brought against Forty Niners SMC when the FAC was filed.

Simply naming Forty Niners SMC as a defendant in the FAC does not make the amendment relate back to the filing of the original complaint. "The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed." (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 (*Woo*).) "A recognized exception to the general rule is the substitution under section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. Among the requirements for application of the section 474 relation back doctrine is that the new defendant in an amended complaint be substituted for an existing fictitious Doe defendant named in the original complaint." (*Ibid.*, internal citations omitted.) The FAC does not satisfy the procedural requirements of section

474 as it does not allege that Forty Niners SMC was substituted for a specific Doe defendant under section 474.

The FAC also does not satisfy the “further and nonprocedural requirement for application of the section 474 relation-back doctrine” in that it does not include any allegations that Plaintiff was genuinely ignorant of the Forty Niners SMC’s identity when the original complaint was filed. “The omission of the defendant’s identity in the original complaint must be real and not merely a subterfuge for avoiding the requirements of section 474. Furthermore, if the identity ignorance requirement of section 474 is not met, a new defendant may not be added after the statute of limitations has expired even if the new defendant cannot establish prejudice resulting from the delay.” (*Woo, supra*, 75 Cal.App.4th at 177, internal citations omitted.)

Plaintiff’s argument that this issue cannot be resolved on demurrer because Plaintiff’s ignorance presents a question of fact is unpersuasive. The FAC does not cite Code of Civil Procedure section 474. And by the time it was filed, the two-year limitations period for a premises liability claim against Forty Niners SMC had already run. The premises liability causes of action as brought against Forty Niners SMC in the FAC is time-barred on its face. There are no allegations in the FAC describing how Plaintiff learned the identity of either of the two newly added defendants.

“[T]here is a general, rebuttable presumption that a plaintiff has knowledge of the wrongful causes of an injury.” (*Poosh v. Philip Morris USA, Inc.* (2011) 51 Cal.4th 788, 795, citing *Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (*Grisham*)). “In order to rebut that presumption, ‘a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’” (*Grisham, supra*, 40 Cal.4th at 638.) “In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to ‘show diligence’; ‘conclusory allegations will not withstand demurrer.’” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808, internal citations omitted.) “In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period.” (*Id.* at p. 809.)

A plaintiff bears the burden of demonstrating that a defect identified on demurrer could be cured through amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’”].) The opposition argues Plaintiff can amend to allege that she was genuinely ignorant of Forty Niners SMC’s “status as a distinct legal entity and of the facts giving rise to [Forty Niners SMC’s] independent liability at the time the original complaint was filed.” (Opposition at p. 7:24-26.)

The court has some doubt that any amendment will alter the conclusions that: (1) no Doe amendments were filed in this case, and (2) the limitations period for a premises liability claim based on a January 13, 2023 injury ran well before both the stipulation in this case and

the filing of the FAC. The court also notes that the alleged circumstances of Plaintiff's injury would appear to put her on inquiry notice that any entities related to the Forty Niners were potential defendants as of the date of her injury. The "limitations period is presumed to afford sufficient opportunity to discover the identity of all the defendants." (*Burdette, supra*, 158 Cal.App.4th at p. 1693.) However, as this is the first pleading challenge in this case, the court will grant leave to amend. The court does not grant leave to add new parties or new causes of action. The court will consider the contents of the original complaint and the FAC if a pleading challenge is brought to any further amended complaint Plaintiff chooses to file. (See *Berg & Berg, supra*, 178 Cal.App.4th at 1034.)

CONCLUSION

Defendant Forty Niners SMC's request for judicial notice is granted in part and denied in part.

Plaintiff's request for judicial notice is denied.

Defendant Forty Niners SMC's demurrer to the FAC and the sole cause of action for premises liability is sustained with leave to amend. Any amended pleading must be filed and served no later than July 27, 2026.

The court will prepare the order.

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Calendar Line 2

Case Name: Ana Verdugo et al. v. Depot Willows LLP et al.

Case No.: 24CV453516

This is an action arising out of a landlord-tenant dispute between self-represented plaintiffs Ana and Andres Verdugo (Plaintiffs) and defendants Depot Willows LLP and Eden Housing Management (Defendants).

Plaintiffs filed their original complaint in December 2024. They filed a first amended complaint (FAC) in April 2025. The FAC alleged causes of action for: (1) “Fraud and Theft”; (2) “Forged Signatures”; (3) “Breach of Contract”; (4) “Neglect”; (5) “Retaliation”; (6) “Harassment”; and (7) “False Advertising.” Defendants filed a demurrer to the FAC that Plaintiffs did not oppose, although they filed a motion to strike the demurrer. The demurrer and motion were heard by the court (Judge Chung) in September 2025. The court denied the motion to strike the demurrer and sustained Defendants’ demurrer to the FAC on the ground that it failed to state sufficient facts to support the alleged causes of action, granting them 20 days’ leave to amend. Judge Chung’s order expressly stated that “[a]ny second amended complaint must comply with rule 2.112 as well as with this order. Plaintiffs are strongly encouraged to seek legal representation to assist them in preparing a proper pleading.” (Sept. 2, 2025 order at p. 12:21-23, emphasis in original.) The order noted that several causes of action improperly attempted to combine allegations of unrelated statutory violations. The court takes judicial notice of Judge Chung’s September 2, 2025 order on its own motion. (Evid. Code, § 452, subd. (d).)

Plaintiffs filed the operative second amended complaint (SAC) in September 2025. The SAC alleges causes of action for: (1) “Breach of Contract”; (2) “Neglect”; (3) “Retaliation”; (4) “Harassment”; (5) “Forgery”; (6) “Fraud”; and (7) “False Advertising.” There are approximately 550 pages of documents attached to the 63-page SAC as exhibits. “A complaint (or cross-complaint) is supposed to consist of ‘(1) a statement of the facts *constituting the cause of action, in ordinary and concise language*, and (2) a demand for judgment. . . .’ (Code Civ. Proc., § 425.10, subd. (a), italics added.) A pleading is no place to quote, paraphrase, or even allude to the testimony of witnesses.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867, fn. 1.)

At issue is Defendants’ demurrer to the SAC, filed in October 2025. Plaintiffs filed an opposition to this demurrer in January 2026. The court has not considered Plaintiffs’ attempts at unauthorized amendments to the SAC filed without leave of court: (1) a “separate declaration in support of the” SAC filed in October 2025, and (2) a “notice of errata” that attempted to change the headings of causes of action that was filed in April 2026.

LEGAL STANDARDS FOR DEMURRERS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal.

Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

Where a demurrer is to an amended complaint or cross-complaint, the court “may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making contradictory averments, in a superseding, amended pleading.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034, internal quotations omitted; see also *Doe v. United States Youth Soccer Assoc.* (2017) 8 Cal.App.5th 1118, 1122.)

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declaration from defense counsel Umid Babojanov only to the extent it discusses the meet and confer efforts required by statute. The court has also not considered the 31-page declaration in support of the SAC filed by Plaintiffs without leave of court. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Defendants demur to the SAC on the basis that all causes of action fail to state sufficient facts. (See notice of demurrer and demurrer.)

As an initial matter, the SAC states that Plaintiffs “have rearranged the causes of action in chronological order, while still stating the same causes of action as alleged in their initial complaint and first amended complaint.” (SAC at ¶ 5.) The court observes that the stated bases for several causes of action in the FAC—alleged violations of various California and federal statutes—were not included in the SAC.

First Cause of Action—Breach of Contract

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The demurrer to this cause of action as alleged in the FAC (as the third cause of action) was sustained because it did not identify what contract it was based on and did not allege that Plaintiffs had performed their obligations under that unidentified contract. It also improperly included a series of alleged statutory violations. (See Sept. 2, 2025 order at p. 10:7-14.)

Defendants contend that the SAC still fails to identify the contract, fails to allege that Plaintiffs had fulfilled all of their contractual responsibilities or were excused from doing so, and fails to allege damages proximately caused by the alleged breaches.

The SAC now identifies the alleged contract as the written lease agreement between Plaintiffs and Defendants, a copy of which is attached to the SAC as exhibit A. Similar to the FAC, the first cause of action lists a series of apparently unrelated incidents that Plaintiffs allege violated various provisions of the lease, but these provisions are now identified. The

first cause of action also alleges proximately caused damages at least to the extent it alleges that Plaintiffs were eventually evicted in part because of the alleged contract violations.

But the first cause of action does not adequately allege that Plaintiffs were in compliance with their obligations under the written lease agreement or were excused from doing so. The conclusory general allegation in paragraph 7 of the SAC that “Plaintiffs met all terms of the contract relevant to this lawsuit” does not satisfy this requirement. As noted above, in ruling on a demurrer the court does not accept as true contentions, deductions, or conclusions of fact or law.

Plaintiffs bear the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*) [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’”].) Plaintiffs’ opposition does not meet this burden, as it asserts that the demurrer should be overruled as to the entire SAC. Contrary to what the opposition suggests, the SAC does not allege a cause of action for breach of the implied warranty of habitability. That is a separate cause of action, distinct from a breach of contract cause of action. Plaintiffs have not alleged a cause of action for breach of the implied warranty of habitability at any point in this lawsuit.

Because there has been some improvement in the pleading of this cause of action from the FAC to the SAC, and it is not yet apparent that it would be futile to do so, the court will grant leave to amend the first cause of action for breach of written contract. The court does not grant leave to add any new causes of action or new parties. “Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court’s order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.)

Second Cause of Action—“Neglect”

There is no common law civil cause of action for neglect. Judge Chung previously noted that, as alleged in the FAC as the fourth cause of action, this cause of action was most reasonably interpreted as “another attempt to allege a series of statutory violations as one cause of action. . . . None of these statutory violations is alleged with sufficient particularity to state a cause of action.” (See Sept. 2, 2025 order at p. 10:16-24.) As now alleged in the SAC, Plaintiffs have removed all references to statutes from the “neglect” cause of action and have asserted a new theory: that damages to a car owned by Plaintiffs during rehabilitation work in March 2022 “demonstrate negligence and constitute breach of contract.” They also reference apparently unrelated later incidents in August and December 2022 and June 2023. (See SAC at ¶¶ “2.0-2.20.”)

This cause of action continues to fail to state sufficient facts. As an initial matter, a party cannot combine negligence and breach of contract into a single cause of action. Most of what is alleged appears to be an attempt to allege negligence. “The elements of a cause of action for negligence . . . are (a) a legal duty to use due care; (b) a breach of such legal duty;

[and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) A fundamental element of any cause of action for negligence is the existence of a legal duty of care running from the defendant to the plaintiff. (*Taylor v. Elliott Turbomachinery Co. Inc.* (2009) 171 Cal.App.4th 564, 593.) “In order to establish negligence, a plaintiff must demonstrate a duty on the part of defendant, breach of that duty, causation and damages.” (*Strong v. State of Cal.* (2011) 201 Cal.App.4th 1439, 1449.) Whether a duty of care exists is a question of law for the court. (*Id.*)

Describing a series of disputes with Defendants and claiming damages does not adequately state a cause of action for negligence. The second cause of action does not sufficiently allege that any damage suffered by Plaintiffs from any of the described incidents was proximately caused by a breach of a legal duty either of the Defendants owed Plaintiffs. Defendants’ demurrer to the second cause of action on the ground that it fails to state sufficient facts is sustained.

The opposition argues that sufficient facts are alleged, but refers to statutes that are not alleged in the SAC. A demurrer was sustained to the FAC on the basis that Plaintiffs failed to adequately allege violations of those statutes, and Plaintiffs subsequently removed all references to those statutes in the SAC. Those statutes cannot be a basis for the second cause of action because the removal of statutory references served to abandon those theories. As explained in the prior demurrer order, if Plaintiffs wished to allege statutory causes of action, such causes of action would have to be pleaded separately and with the particularity required for statutory claims.

Plaintiffs’ opposition does not meet their burden to show how the second cause of action could be amended. The court will grant further leave to amend the second cause of action as a common law negligence cause of action only. The court does not grant leave to reassert the allegations of statutory violations Plaintiffs alleged in the FAC but abandoned when filing the SAC.

Third Cause of Action—“Retaliation”

There is no common law cause of action for retaliation. Judge Chung found that, as alleged in the FAC as the fifth cause of action, this appeared to be an unsuccessful attempt to allege retaliatory eviction under Civil Code section 1942.5. (See Sept. 2, 2025 order at p. 11:2-8.) The general rule is that statutory causes of action must be pleaded with particularity. (See *Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) When a statutory cause of action is alleged, “the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate.” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d. 1, 5.)

All references to statutes, including Civil Code Section 1942.5, have now been removed from the SAC and the third cause of action. (See SAC at pp. 30-36.) Defendants’ demurrer to the third cause of action on the ground that it fails to state sufficient facts is sustained.

Plaintiffs' opposition does not meet their burden to show how the defect could be cured. The opposition simply recites the elements of retaliatory eviction under Civil Code section 1942.5, but again all references to that statute have been removed from the SAC. As no common law cause of action for retaliation exists, further leave to amend the third cause of action is denied.

Fourth Cause of Action—"Harassment"

There is no common law cause of action for harassment. In the prior demurrer order, Judge Chung concluded that this cause of action as alleged in the FAC could "only reasonably be interpreted as asserting a cause of action for violation of Civil Code section 1940.2—sometimes referred to as a 'constructive eviction' cause of action." The previous demurrer to this cause of action was sustained because the statutory claim was not alleged with sufficient particularity. (See Sept. 2, 2025 order at p. 11:10-16.)

As now alleged in the SAC, this cause of action continues to appear to be an attempt to plead a violation of Civil Code section 1940.2. But all references to the statute have been removed and the claim continues to not be pleaded with the particularity required for a statutory claim. Defendants' demurrer to the fourth cause of action on the ground that it fails to state sufficient facts is sustained.

The opposition does not meet Plaintiffs' burden to show how the defect could be cured through further amendment. Plaintiffs argue that they are alleging a violation of Civil Code section 1940.2, despite all statutory references having been removed from the SAC and the lack of sufficient particularity. As no common law cause of action for harassment exists, further leave to amend the fourth cause of action is denied.

Fifth Cause of Action—"Forgery"

There is no civil cause of action for forgery. The prior demurrer was sustained to this cause of action (the second in the FAC) because the claim "improperly" attempted "to combine alleged violations of unrelated statutes into one confusing cause of action," and because "[n]othing in Penal Code section 470 indicates that a private right of action to enforce it is available in a civil lawsuit." (Sept. 2, 2025 order at p. 9:19-25.)

As alleged in the SAC, the fifth cause of action continues to allege forgery (of a lease) in a conclusory fashion. The opposition confirms that Plaintiffs are trying to allege a "criminal offense" of forgery under Penal Code section 470, despite all references to this statute having been removed from the SAC and the fifth cause of action not being alleged with particularity.

To enforce a Penal Code section in a civil court, there must be a private tort right of action to enforce the specific Penal Code section. (*Animal Legal Defense Fund v. Mendes* (2008) 160 Cal.App.4th 136, 145; see also *Vasquez v. SOLO I Kustoms, Inc.* (2018) 27 Cal.App.5th 84, 90-91 ["The Legislature's intention to create a private cause of action must be expressly stated or strongly implied in the statutory language or legislative history."].) Penal Code section 470 does not contain any language suggesting that the Legislature intended to create a private right of action to enforce it. The fifth cause of action therefore fails as a matter of law. The demurrer to the fifth cause of action is sustained without further leave to amend.

Sixth Cause of Action—“Fraud”

The prior demurrer to this cause of action, alleged as the first cause of action in the FAC, was sustained because it was not alleged with sufficient specificity for a fraud claim, and because it attempted to include alleged violations of several unrelated statutes. (See Sept. 2, 2025 order at pp. 8:19-9:17.)

“The elements of fraud are (1) the defendant made a false representation as to a past or existing material fact; (2) the defendant knew the representation was false at the time it was made; (3) in making the representation, the defendant intended to deceive the plaintiff; (4) the plaintiff justifiably relied on the representation; and (5) the plaintiff suffered resulting damages.” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792 [citation omitted].) “Fraud must be pleaded with specificity rather than with general and conclusory allegations. The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (*Id.* at p. 793 [citation and quotation marks omitted].) Courts enforce the specificity requirement in consideration of its two purposes. The first purpose is to give notice to the defendant with sufficiently definite charges that the defendant can meet them. (*Ibid.*) The second is to permit a court to weed out meritless fraud claims on the basis of the pleadings; thus, the pleading should be sufficient to enable the court to determine whether, on the facts pleaded, there is any foundation, *prima facie* at least, for the charge of fraud. (*Ibid.*)

As alleged in the SAC, this cause of action now identifies a specific person who allegedly made false representations on behalf of Defendants at identified times. It alleges that Veronica Fisher, the alleged manager of the property in 2024, made false statements about the amount of rent owed in copies of ledgers provided to Plaintiffs, and that this was done to “facilitate eviction.” While the sixth cause of action also alleges that another manager, Benjamin Sheppard, also provided a ledger, it does not allege that this ledger intentionally contained false information.

But the sixth cause of action fails to allege that Plaintiffs reasonably relied on any of the alleged misrepresentations as to rent owed, etc., or that Plaintiffs suffered damages because of their reasonable reliance on those misrepresentations. To the contrary, the SAC suggests that Plaintiffs never believed any of the alleged misrepresentations by Veronica Fisher about the amount of rent due, and always believed the amount stated by Defendants was incorrect because of alleged discrepancies with other records and Plaintiffs’ own calculations. Defendants’ demurrer to the sixth cause of action on the ground that it fails to state sufficient facts is therefore sustained.

Plaintiffs’ opposition does not meet their burden to show how the defect in the sixth cause of action could be cured through amendment. But because it is not yet apparent that doing so would be futile, the court will grant leave to amend. Again, the court does not grant leave to add any new causes of action or parties.

Seventh Cause of Action—“False Advertising”

The False Advertising Law bars “any advertising device . . . which is untrue or misleading.” (Bus. & Prof. Code, § 17500.) “Because this law and the fraudulent prong of the unfair competition law substantively overlap, the plaintiff’s burden under these provisions is the same: To prevail on a claim under the False Advertising Law, [he] must show that ‘members of the public are likely to be deceived’ and must do so as adjudged through the eyes of ‘the reasonable consumer.’” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1136 (*Shaeffer*)). A plaintiff must also allege an economic injury that was caused by the false advertising—advertising statements likely to deceive members of the general public under an objective reasonable consumer standard. (*Id.* at p. 1137.) As a statutory cause of action, false advertising must be alleged with particularity.

The prior demurrer was sustained as to this cause of action (alleged as the seventh cause of action in the FAC) because it failed “to sufficiently state that either of the Defendants engaged in advertising likely to deceive members of the general public under an objective standard or state that such advertising was the cause of economic injury to Plaintiffs.” (Sept. 2, 2025 order at p. 12:8-11.)

As alleged in the SAC, this cause of action continues to be based on Plaintiffs’ disputes with Defendants, their personal beliefs about the truth and accuracy of requests for donations sent out by Defendants, and their belief that they should not have been evicted. Plaintiffs did not cure the defect identified by the prior demurrer. As the seventh cause of action still does not allege with particularity that advertising statements by either of the Defendants were likely to deceive reasonable members of the general public under an objective standard, it does not state sufficient facts under the *Shaeffer* decision. Defendants’ demurrer is therefore sustained.

Plaintiffs’ opposition does not meet their burden to show how the defect could be cured. Because plaintiffs have not demonstrated a reasonable possibility that further amendment will allow them to adequately state a cause of action for violation of the False Advertising Law, further leave to amend the seventh cause of action is denied.

CONCLUSION

Defendants’ demurrer is SUSTAINED WITHOUT FURTHER LEAVE TO AMEND as to the third, fourth, fifth and seventh causes of action.

Defendants’ demurrer to the SAC is SUSTAINED WITH LEAVE TO AMEND as to the first, second, and sixth causes of action. The court does not grant leave to add any new causes of action or new parties. Any amended pleading must be filed and served no later than July 27, 2026.

The court will prepare the order.

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Calendar Line 4**Case Name:** In re: 18255 Clemson Ave., Saratoga, CA 95070**Case No.:** 25CV468241

Claimant Ruchun Yang's motion to set aside order due to inadvertence. Notice is not proper; no proof of service was filed. Claimant Yuhua Jin opposes the motion.

This matter involves surplus funds deposited with the clerk of court under Civil Code section 2924j arising out of a foreclosure sale of property at 18255 Clemson Avenue, Saratoga California. (The court derives this procedural background from its Order re: Claim for Surplus Funds, filed Nov. 13, 2025. The court takes judicial notice of that order on its own motion. (Evid. Code, § 452, subd. (d).) Yang filed a motion to claim the funds, and Jin filed a competing claim. Jin submitted argument and evidence, contending that she was entitled to the full amount of the surplus funds. Yang did not file "any evidence or arguments to rebut Jin's claim of seniority." (11/13/25 Order at 2:16-17.) The court "determine[d] that Jin is entitled to the entire amount deposited with the clerk of court. Jin's claim is granted, Yang's claim is denied, and Palm Street Capital LLC and Yu have not filed any timely claim." (*Id.* at p. 3:8-10.)

Code of Civil Procedure section 473, subdivision (b) gives trial courts discretion to relieve a party from an order "taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." But that section is not a " " "catch-all remedy for every case of poor judgment." ' ' ' (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206.) Relief under that section is appropriate only " 'where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.' " (*Ibid.*) The party seeking relief bears the burden of proof. (*Id.* at p. 1205.) And self-represented litigants "are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.)

Yang argues an inability to find legal assistance related to the claim process. That is not an adequate basis for relief under Code of Civil Procedure section 473, subdivision (b). Yang contends the court did not provide email notification about a tentative decision in this matter, and that the court's practice of posting tentative decisions did not provide adequate time to respond. The court follows California Rules of Court, rule 3.1308, and Santa Clara County Superior Court local rule 8.D regarding tentative decisions. There is no indication the court deviated from those rules with the tentative decision in this case. Yang argues an exhibit referenced but not included in Yang's original claim "is relevant and material." That is not an adequate basis for relief under Code of Civil Procedure section 473, subdivision (b). And even if the court construed Yang's request as a motion for reconsideration under Code of Civil Procedure section 1008, the information in that exhibit does not rebut the evidence on which Jin's claim to the funds was based.

The motion is DENIED. The court will prepare the order.

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Calendar Line 5

Case Name: Xinyao Zhou v. Yan Ren et al.

Case No.: 26CV487480

Defendant Yan Ren's motion to transfer venue. Notice is proper and the motion is opposed by plaintiff Xinyao Zhou. The other named defendants are Robert Solis and Beyond Biz Law, PC. The complaint alleges causes of action for professional negligence (legal malpractice) and other torts, related to defendants' representation of plaintiff in "litigation captioned Xinyao Zhou v. Hotel Winters, LLC, Yolo County Superior Court Case Nos. CV2022-1963 and CV2023-0312, and a related case Hotel Winters, LLC v. Xinyao Zhou, Case No. CV2023-1836." (Complaint, ¶ 2.)

If "an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers." (Code Civ. Proc., § 396b, subd. (a).) If it appears that the action or proceeding was not commenced in the proper court, the court shall order the action transferred to the proper court. (*Ibid.*) The moving defendant has the burden to demonstrate that the plaintiff's venue selection is not proper under any of the statutory grounds. (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836.) A court also has discretion, on motion of a party, to "change the place of trial" when the "convenience of witnesses and the ends of justice would be promoted by the change." (Code Civ. Proc., § 397.)

Code of Civil Procedure section 395, subdivision (a) governs venue in this case. Among other things, it provides that venue is proper (1) "where the defendants or some of them reside at the commencement of the action," or (2) in a case where negligence is alleged, "where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action." "A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases." (Code Civ. Proc., § 395.5.)

It is undisputed that defendant Ren resides in San Diego County. Plaintiff's complaint alleges that the other defendants also reside in San Diego County. (Complaint, ¶¶ 2-4.) Plaintiff's allegations about injury largely relate to defendant Ren's work for plaintiff on the cases plaintiff litigated in Yolo County. Under section 395, subdivision (a), venue is therefore appropriate in either San Diego or Yolo County. By contrast, the main connection to Santa Clara County appears to be that plaintiff resides here. The court further exercises its discretion under Code of Civil Procedure section 397 to transfer the matter to Yolo County. The court finds that the convenience of witnesses and the ends of justice would be promoted by the change. Plaintiff chose Yolo County as the venue for the actions for which she argues defendants provided negligent representation. Any third party witnesses related to that litigation are likely also located in or around Yolo County.

Plaintiff's arguments in opposition are unpersuasive. Plaintiff argues she received alleged misrepresentations and detrimentally relied on the engagement letter "from her Santa Clara County residence." She also argues she experiences emotional distress in this county. But the source of those injuries was defendants' work for plaintiff on the Yolo County actions. Even under Code of Civil Procedure section 395.5—which applies to only the corporate defendant who has not filed the instant motion—liability and any breach of contract occurred in Yolo County. Plaintiff's argument about an "appearance concern" based on Yolo County judges having decided other cases adversely to plaintiff is not persuasive, as it is based on speculation.

The motion to transfer venue is GRANTED. (Code Civ. Proc., §§ 395, 397.) Moving party is ordered to submit a proposed order restating this tentative decision verbatim and ordering the case transferred to Yolo County.

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